

HOUSE No. 788

The Commonwealth of Massachusetts

PRESENTED BY:

David Allen Robertson

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to ensure senior care organization quality and accountability.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>David Allen Robertson</i>	<i>19th Middlesex</i>	<i>1/16/2025</i>

HOUSE No. 788

By Representative Robertson of Tewksbury, a petition (accompanied by bill, House, No. 788) of David Allen Robertson for legislation to ensure senior care organization quality and accountability. Elder Affairs.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 646 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to ensure senior care organization quality and accountability.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Section 9D of Chapter 118E of the General Laws, as appearing in the 2020 official
2 edition is hereby amended by inserting at the end of the Section the following language:

3 (7) In contracting with a nursing home licensed under chapter 111, section 71 of the
4 General Laws, any MassHealth Senior Care Options programs as defined in Chapter 119E,
5 section 9D with which the MassHealth agency contracts to provide and coordinate services on a
6 capitated basis shall reimburse the nursing home for care and services provided to a MassHealth
7 member at an amount no less than the Medicaid fee-for service payments rates established in 101
8 CMR 206: Standard Payments to Nursing Facilities. Such payments shall include room and
9 board and all rate add ons specified in this regulation, for purposes of ensuring access to critical
10 services and to facilitate transitions from hospitals to nursing facilities.